

****December 17, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in November 2024, an investigation into the operator UNICREDIT CONSUMER FINANCING IFN S.A. and found a violation of the provisions of Article 6 paragraph (1) in conjunction with the provisions of Article 5 paragraph (1) letters a) and f), paragraph (2) and Article 32 paragraph (4) of Regulation (EU) 2016/679. For the committed act, the operator was sanctioned with a fine amounting to 24,885 lei, equivalent to the sum of 5,000 euros.

The investigation was initiated following the transmission by the operator UNICREDIT CONSUMER FINANCING IFN S.A. of a notification of a personal data security breach, based on the obligation it has under the provisions of Article 33 of Regulation (EU) 2016/679. It was reported that personal data such as: name, surname, position, signature belonging to data subjects (former employees), were processed by including them in certain contractual documents and used in the relationship with the operator's clients and collaborators, even though their individual employment contracts had been terminated.

During the investigation, it was found that UNICREDIT CONSUMER FINANCING IFN S.A. processed the personal data of some former employees in violation of the principles set forth by the Regulation, as a result of operational errors. At the same time, it was found that the operator did not responsibly monitor the application of procedures that ensure the confidentiality and security of personal data, which led to the use of document versions with outdated signatories.

In this context, the processing of personal data was carried out without legal basis, in violation of the processing principles regarding legality, security, and protection against unauthorized or illegal processing. For this act, the operator was sanctioned with a fine for violating the provisions of Article 6 paragraph (1) of Regulation (EU) 2016/679 in conjunction with the provisions of Article 5 paragraph (1) letters a) and f), paragraph (2) and Article 32 paragraph (4).

Additionally, a corrective measure was ordered for the operator to implement a monitoring plan for the application of procedures to ensure compliance with the provisions of the Regulation at all times, including regarding the processing of personal data of employees who terminate their contractual employment relationship with UNICREDIT CONSUMER FINANCING IFN S.A. The operator has paid the established contravention fine.

****Legal and Communication Department****

****N.A.S.P.D.C.P****